



Administration of Justice Act 1968

1968 CHAPTER 5

An Act to make provision with respect to the maximum numbers of Lords of Appeal in Ordinary and certain other judges. [15th February 1968]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Maximum numbers of Lords of Appeal in Ordinary and certain other judges.

1.—(1) The maximum number—

(a) of Lords of Appeal in Ordinary shall be eleven;

(b) in England and Wales—

(i) of ordinary judges of the Court of Appeal shall be thirteen;

(ii) of puisne judges of the High Court shall be seventy;

(iii) of county court judges shall be ninety-seven;

(c) in Scotland, of judges of the Court of Session shall be nineteen;

(d) in Northern Ireland, of puisne judges of the High Court shall be four.

(2) Her Majesty may by Order in Council from time to time amend the foregoing subsection so as to increase or further increase the maximum number of appointments which may be made to any of the offices therein mentioned.

(3) No recommendation shall be made to Her Majesty in Council to make an Order under this section unless a draft of the Order has been laid before Parliament and approved by resolution of each House of Parliament.

(4) There shall be paid out of the Consolidated Fund, or out of moneys provided by Parliament, any increase attributable to the provisions of this Act in the sums which, under any other enactment, are payable out of that Fund, or out of moneys so provided, as the case may be.

(5) The enactments described in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(6) In paragraph 1(1) of Part II of Schedule 7 to the Government of Ireland Act 1920 (which provides that the High Court in Northern Ireland shall consist of the Lord Chief Justice of Northern Ireland and two puisne judges), after the word "and" there shall be inserted the words "not less than".

2. This Act may be cited as the Administration of Justice Short title Act 1968.

Section 1.

SCHEDULE

REPEALS

Chapter	Short title	Extent of Repeal
39 & 40 Vict. c. 59.	The Appellate Jurisdiction Act 1876.	In section 6, the word "two" where it first occurs.
3 & 4 Geo. 5. c. 21.	The Appellate Jurisdiction Act 1913.	Section 14, so far as unrepealed.
10 & 11 Geo. 5. c. 67.	The Government of Ireland Act 1920.	The whole Act, so far as unrepealed.
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act 1925.	In Part II of Schedule 7, in paragraph 1(1), the words "three judges, namely"; and paragraph 1(2).
19 & 20 Geo. 5. c. 8.	The Appellate Jurisdiction Act 1929.	In section 2(1), the words "nor more than sixty-three".
10 & 11 Geo. 6. c. 11.	The Appellate Jurisdiction Act 1947.	In section 6(1), the words "nor more than eleven".
12, 13 & 14 Geo. 6. c. 10.	The Administration of Justice (Scotland) Act 1948.	Section 2.
4 & 5 Eliz. 2. c. 68.	The Restrictive Trade Practices Act 1956.	Section 1, except so much of the proviso to subsection (1) as follows the words "Provided that".
7 & 8 Eliz. 2. c. 22.	The County Courts Act 1959.	Section 1, except so much of the proviso to subsection (1) as follows the words "Provided that".
9 & 10 Eliz. 2. c. 3.	The Administration of Justice (Judges and Pensions) Act 1960.	Section 32, so far as unrepealed.
1963 c. 39.	The Criminal Justice (Scotland) Act 1963.	Section 35(2).
1964 c. 42.	The Administration of Justice Act 1964.	In section 4(1), the words from "but" onwards.
1964 c. 58.	The Resale Prices Act 1964.	In section 1(2), the words "nor more than eleven".
1965 c. 61.	The Judges Remuneration Act 1965.	In Part I of Schedule 2, the words "nor more than eleven".
		Section 49.
		Section 54(2).
		In section 5(2), the words from "limit" to "total" and the words from "shall be" to "judges".
		In Schedule 3, paragraph 25(1).
		Section 9, so far as unrepealed.
		Section 10(2).
		Section 3.
		In Schedule 2, in the entry relating to the Supreme Court of Judicature (Consolidation) Act 1925, the words "nor more than sixty-three".